PHILLIP HOVE
(In his official capacity as the Executor dative to the
Estate of the late Bernard Timothy Hove.)

VERSUS

RITA HWATA
(In her individual capacity as well as in her official
Capacity as executrix dative for the estate of the late Douglas Hwata.)

AND

THE REGISTRAR OF DEEDS N.O

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 11 NOVEMBER 2025 & 30 APRIL 2026

Civil Trial- Stated case

T.Shava, for the plaintiff
L. Matapura, for the 1st defendant
No appearances on behalf of the 2nd defendant

MPOKISENG DUBE J: The plaintiff is Phillip Hove, who appears in his official capacity as the Executor Dative of the Estate of the Late Bernard Timothy Hove, having been issued with Letters of Administration by the Assistant Master of the High Court at Gweru in November 2023. The 1st defendant, Rita Hwata, cited herein in a dual capacity, i.e. individually and as the Executrix Dative of the Estate of the Late Douglas Hwata, following her appointment on December 4, 2001. The 2nd defendant, the Registrar of Deeds, is joined *nominee officio* to facilitate the potential transfer of title should the plaintiff's primary prayer for specific performance succeed.

The plaintiff issued a summons against the 1st defendant seeking an order for specific performance as follows:

> (a) That the 1st defendant be and is hereby ordered to sign all necessary and requisite transfer documents at Messrs Wilmot and Bennett within seven (7) days of this order, in order to facilitate transfer of ownership in respect of Stand No. 2408 Mbizo Township, of Stand 479

Mbizo Township located at House No. 408 Section 12, Mbizo, Kwekwe to the estate of the late Bernard Timothy Hove.

(b) That the 1st defendant be and is hereby ordered to make the necessary attendances at the Zimbabwe Revenue Authority (ZIMRA), Kwekwe within seven (7) days of this order or as directed by the said authority in order to secure the requisite Capital Gains Tax Clearance Certificate in respect of the aforementioned property.

(c) That in the event of 1st defendant failing to comply with the terms of the order in clauses (a) and (b) above then the Sheriff of the High Court or his lawful deputies or assistants be and are hereby authorized or directed to sign any documents and undertake any process necessary to effect transfer of ownership into the name of the late Bernard Timothy Hove whenever and wherever such attendance(s) or appearance(s) or signature(s) is/are due by the 1st defendant and in her place and stead.

(d) That 2nd defendant be and is hereby ordered to accept all such documents signed on the 1st defendant's behalf by the office of the Sheriff for purposes of effecting transfer of ownership into Bernard Timothy Hove's name.

(e) That the 1st defendant shall bear or make good all payments which maybe made by the Plaintiff with regards to Capital Gains Tax.

(f) That in the alternative to (a, b, c, d & e) above. 1st defendant be and is hereby advised to pay damages for breach of contract to the sum of US$35000-00 being the cost of obtaining a similar house/ property elsewhere, plus 5% per annum interest for the date of summons to date of payment.

(g)That the 1st defendant shall bear the costs of this suit, at Attorney-client scale (if the claim is opposed).

The facts giving rise to this claim are as follows: The late Bernard Timothy Hove entered into an agreement of sale with the 1st defendant on April 12, 2001, concerning an immovable property described as Stand No. 2408 Mbizo Township, of Stand 479 Mbizo Township, Kwekwe, more commonly known as House No. 408, Section 12, Mbizo. For over twenty-three years, the late Bernard Timothy Hove and his successors-in-title have remained in vacant and undisturbed occupation of the premises, having purportedly paid the full purchase price of $310 000.00 at the inception of the transaction. The plaintiff now brings this action to compel the 1st defendant to finalise the transfer of title or, in the alternative, to pay damages in the sum of US$35 000.00 representing the current market value of a comparable residential unit in the Kwekwe municipality.

The 1st defendant has opposed the claim, stating that the claim has prescribed under the three-year limitation period provided by the Prescription Act [*Chapter 8:11*]. Furthermore, the 1st defendant states that the agreement of sale was *void ab initio* because, at the time of its

execution in April 2001, she had not yet been appointed as the executrix dative of the late Douglas Hwata's estate, nor had she obtained the mandatory consent of the Master of the High Court as required by s 120 of the Administration of Estates Act [*Chapter 6:01*].

The parties agreed that the facts were common cause and, to do away with the leading of evidence, filed a statement of agreed facts. The statement of agreed facts states the following:

> 4. The parties agreed in respect of the following facts;
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> 4.1 On the 24th of April 2001, the Late BERNARD TIMOTHY HOVE and RITA HWATA concluded an Agreement of Sale of an immovable property known as stand number 2408 Mbizo Township, of Stand 479 Mbizo Township, Kwekwe, also known as house number 408, Section 12, Mbizo Kwekwe (herein after referred to as the property).
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> 4.2. The property is an asset of the Estate late DOUGLAS HWATA.
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> 4.3. At the time the sale agreement was concluded, RITA HWATA was not yet appointed to be the Executrix Dative of the Estate Late DOUGLAS HWATA. The Estate had not yet been registered with the Master of the High Court.
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> 4.4. RITA HWATA was appointed the Executrix Dative of the Estate on the 4th day of December 2001. The Master of the High Court issued letters of Administration appointing her on the 4th of December 2001.
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> 4.5. No Consent to sale in terms of section 120 of the ADMINISTRATION OF ESTATES ACT was sought and granted to RITA HWATA at the time of concluding the sale. Up to date, the Master has not issued a consent to sale the property.
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> 4.6. The Plaintiff and other beneficiaries of the Estate late BERNARD TIMOTHY HOVE are in occupation of the property and have been in occupation since April 2001.
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> 4.7. The Plaintiff is seeking an order compelling specific performance by the RITA HWATA in her capacity as the Executrix Dative of the Estate late DOUGLAS HWATA or damages in-lieu of specific performance.
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> 5. The parties agreed that the following issues fall for determination;
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> 5.1. Whether or not the Plaintiff's claims has prescribed at law?
>
> 5.2. Whether or not the agreement of sale is valid at law?
>
> 5.3. Whether or not a remedy of specific performance or payment of damages is available to the Plaintiff under the circumstances?

Whether or not the plaintiff's claim has prescribed at law.

The 1st defendant contends that the plaintiff's claim has prescribed. Counsel for the 1st defendant argued that the right to claim transfer arose in April 2001 upon the payment of the purchase price and that the plaintiff's failure to institute proceedings within the subsequent three years resulted in the extinction of the debt. He further states that the nature of the relief sought, which is specific performance, is a debt, and thus the plaintiff had three years to seek such relief. That the late Bernard Timothy Hove was aware of all relevant facts in April 2001. He had paid the price, taken occupation, and was awaiting transfer. Therefore, the cause of action was complete, and the three-year period should have expired in April 2004. The 1st defendant in her heads of arguments cites the case of *Banket Trading Company (Private) Limited v Chikwenga* HH 538-24, which stated that a claim for *rei vindicatio* falls within the ambit of a debt and is subject to the three-year prescription period.

The plaintiff challenges this on both procedural and substantive grounds. Procedurally, the plaintiff relies on the Constitutional Court's ruling in *Dengezi v Nyamaruru & 4 Ors* CCZ 13-23, to the effect that prescription must be raised as a special plea. The plaintiff argues that by failing to strictly comply with r 42 of the High Court Rules, the 1st defendant should be barred from raising the point.

Substantively, the plaintiff argues that the prescription was interrupted or delayed. Further, that Bernard Timothy Hove died in March 2004, and no executor was appointed until 2023. The plaintiff relied on the case of *Sibanda v Moyo* HB 51-21, which confirms that a deceased estate can only act through its executor. It is the plaintiff's contention that between 2004 and 2023, there was no person capable of enforcing the claim, thereby suspending the running of prescription by operation of law.

I do not agree with Ms T. Shava for the plaintiff that the prescription in this case was not properly pleaded. Prescription as a point of law can be raised at any stage, provided it does not cause irremediable prejudice, see *Chimbetete v Bako* HH 36-25. Given that the parties included a prescription in the Statement of Agreed Facts, no such prejudice exists here.

It is the plaintiff's argument that because he has enjoyed all the benefits of an owner for 22 uninterrupted years, the debt could not have fallen due. However, this argument tries to combine contractual rights with acquisitive prescription. Acquisitive prescription, under s 4 of

the Act, requires thirty years of open and adverse possession "as if he were the owner". The plaintiff's claim is currently for specific performance of a contract, not for a declaration of ownership based on thirty years of possession.

Nevertheless, given the fact that the appellant was in unlawful occupation of the property as ownership was still vested in the late Douglas Hwata, prescription could not begin to run. Section 16 of the Prescription Act provides that prescription shall commence to run as soon as the debt is due. On the contrary, what this means is that the prescription does not begin to run until a debt is due. In the absence of a debt between the parties, therefore, it means prescription could not begin to run. The argument on prescription does not hold water, therefore.

Whether or not the agreement of sale is valid at law.

It is an undisputed fact that Rita Hwata was not the executrix of her late husband's estate when she signed the agreement in April 2001; her appointment only occurred in December of that year. At the time of the sale, the estate had not even been registered with the Master.

In *Katirawu v Katirawu* 2007(2) ZLR 64 (H), an executor had obtained letters of administration fraudulently under the guise that he was a son of the deceased and that he was the only beneficiary. His appointment was challenged, and the purchaser of the property opposed the application to have the sale declared null and void on the grounds that she was an innocent purchaser. The court, in dealing with this matter, stated as follows:

> *"*It is as if there was never a sale between her and 1st Respondent and consequently no rights can flow from a non sale in her favour. The sale and consequent cession in her favour amount to nothing at law for nothing legal can flow from a fraud*"*.

This principle is also echoed in *Katsingo v Charlie & Ors* HH 6-09, reinforcing the idea that capacity is a prerequisite for the validity of any contract involving estate assets.

The requirement of the Master's consent in terms of s 120 of the Administration of Estates Act.

Section 120 of the Administration of Estates Act [*Chapter 6:01*] mandates that if an executor intends to sell estate property other than by public auction, they must seek and obtain the Master's consent. This consent is only granted if the Master is satisfied that the sale is to the advantage of the persons interested in the estate.

The 1st defendant correctly points out that no such consent was ever sought or granted. In the case of *Chioza v Siziba* S-4-15, the Supreme Court stated as follows:

> "It is now established that an illegal agreement which has not yet been performed either in whole or in part will never be enforced by the Court. See *York Estates Ltd v Wareham* 1950 (1) SA 125 at p 128 where LEWIS ACJ, said:-
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> "The Court has no equitable jurisdiction to grant relief to a plaintiff seeking to enforce a contract prohibited by law. See *Matthews v Rabinowitz* 1948 (2) SALR 876 W.L.D. In fact the Court is bound to refuse to enforce a contract which is illegal even though no objection to the legality of the contract is raised by the parties. *CAPE DIARY and GENERAL LIVESTOCK ENGINEERS v SIM (*Supra)[1]
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> This rule is absolute and admits of no exception. It is expressed in the *maxim ex turpi causa non oritur actio*. See *Dube v Khumalo* 1986(2) ZLR 103 (SC) at p 109. It is based on the principle, expressed variously, that the Court cannot aid a party to defeat the clear intention of an ordinance or statute; that Courts of justice cannot recognize and give validity to that which the legislature has declared shall be illegal and void; and that the courts will not permit to be done indirectly and obliquely what has expressly and directly been forbidden by the legislature."

The plaintiff attempts to evade this by arguing that Rita Hwata was a surviving spouse and, as such, was entitled to inherit the house under the Deceased Estates Succession Act. Citing *Mashingaidze v Mandigo & 2 Ors* HH 809-16, the plaintiff suggests that because she was the sole beneficiary, the sale was effectively valid. However, this argument ignores the procedural necessity of estate administration. Even a sole beneficiary cannot deal with estate assets until they have been formally awarded to them in a confirmed Liquidation and Distribution Account. To allow a surviving spouse to sell the matrimonial home before being appointed as an executor and without the Master's oversight would be chaotic and likely to cause fraudulent activities in the system of succession.

[1] 1924 AD 167

Whether or not a remedy of specific performance or payment of damages is available to the plaintiff under the circumstances?

The plaintiff's primary prayer is for specific performance, i.e., an order of the court requiring the 1st defendant to sign the transfer papers. In the alternative, the plaintiff seeks US$35 000.00 as damages for breach of contract.

Specific performance is a remedy which is generally available to a party who has fully complied with their side of a valid agreement or contract. Having concluded that the 2001 agreement is void *ab initio*, there is no valid contract to perform. The court cannot exercise its discretion to order a party to commit an act that would violate the Administration of Estates Act *supra*. Ordering the transfer of a property that was sold without the Master's consent would effectively make the court an accomplice to the breach of s 120.

The Claim for Damages and Unjust Enrichment

The plaintiff's alternative claim for US$35 000.00 is also grounded on the basis that there was a breach of contract. However, if the contract is void, there is no breach because there was no binding legal obligation to begin with. Nevertheless, the plaintiff argues that to deny all relief would lead to the unjust enrichment of the 1st defendant, which in my view is rightfully so.

The doctrine of unjust enrichment, as correctly submitted by the plaintiff in his heads of arguments, as outlined in *Silonda v Nkomo* SC 6-22 and in the case also citing Du Plessis, requires four elements:

(1) The defendant must be enriched,

(2) The plaintiff must be impoverished,

(3) The enrichment must be at the plaintiff's expense, and

(4) The enrichment must be without legal ground.

In the *Silonda* case *supra*, the Supreme Court dealt with a situation where a land sale was declared null and void due to the lack of a subdivision permit. Despite the illegality, the

Court relaxed the *in pari delicto* rule to allow the purchaser to recover the value of improvements made to the property. The Court found that while the contract was unenforceable, the seller could not simply keep the improvements without compensation. The Court awarded $125,000.00 based on the depreciated replacement value of the structures built by the purchaser.

In the present case, the enrichment would be the 1st defendant retaining both the property and the purchase price paid in 2001. The plaintiff paid the purchase price in full and has occupied the property for twenty-four years. The 1st defendant, having accepted the money and delivered occupation, now seeks to use her own failure to follow estate procedures to rescind the deal.

The challenge for the Court is the valuation of this enrichment. The amount paid in 2001 has no modern equivalent due to Zimbabwe's currency shifts. The plaintiff's claim for US$ 35,000.00 is an attempt to quantify the current loss. However, unlike *Silonda*, where there were physical improvements (dwellings, electricity infrastructure), the plaintiff in this case is primarily seeking the value of the property itself.

The Court therefore cannot ignore the fact that the 1st defendant entered into a transaction, took the purchaser's money, and allowed him and his family to live in the house for nearly a quarter of a century. To allow the 1st defendant to now claim the house back without any consequence, relying on a nullity that she herself created by failing to obtain the Master's consent, would be to permit the law to be used as an instrument of fraud.

The 1st defendant, having been appointed in December 2001, had a fiduciary duty to regularise the estate. She knew of the 2001 sale. She could have approached the Master for his/her consent under s 120 or sought directions on how to handle the sale concluded prior to her appointment. Instead, she did nothing for over two decades, only raising the illegality of her own actions when sued for transfer. This suggests a level of *mala fides* that warrants the Court's intervention through the relaxation of the *in pari delicto* rule.

Disposition and Order

After considering the case law and the facts of this case, the court finds that the primary claim for specific performance cannot be granted. The contract of April 2001 was a nullity due to the seller's lack of capacity and the absence of the Master's consent.

However, the court finds that the 1st defendant has been unjustly enriched. She took the purchase price and, for over twenty-two years, treated the sale as valid by allowing the plaintiff's family to remain in occupation and handing over the original title deeds to conveyancers. To allow her to take back the property now without compensation would be an unjust outcome.

Following the spirit of *Silonda v Nkomo*, the court will grant a compensatory order. Since the contract is a nullity, the plaintiff cannot claim damages for breach, but he is entitled to the restitution of his position. Given the total loss of value of the original Zimbabwean dollar payment, the most equitable measure of restitution is the current market value of the interest the plaintiff believed he had acquired.

It is therefore ordered as follows:

1. The plaintiff's claim for specific performance to compel the transfer of Stand No. 2408 Mbizo Township, Kwekwe, into the name of the Late Bernard Timothy Hove be and is hereby dismissed.
2. The agreement of sale concluded between Rita Hwata and the Late Bernard Timothy Hove in April 2001 is hereby declared to be null and void for non-compliance with Section 120 of the Administration of Estates Act [*Chapter 6:01*].
3. The 1st defendant, in her capacity as Executrix Dative of the Estate Late Douglas Hwata and in her personal capacity, is hereby ordered to pay the plaintiff the sum of US$ 35,000.00 (or its equivalent in the local currency of Zimbabwe at the prevailing interbank rate on the date of payment) as compensation for unjust enrichment within 90 days of the granting of this order.
4. In the event that the 1st defendant fails to make the payment as ordered in Paragraph 3, the plaintiff and all those claiming through the Estate Late Bernard Timothy Hove shall have a right of retention over the property (House No. 408, Section 12, Mbizo, Kwekwe) and shall not be evicted therefrom until the full amount has been paid.
5. The 1st defendant shall pay costs of suit on an ordinary scale.

Chitsva and Masvaya, plaintiff's legal practitioners
Mafongoya & Matapura, 1st defendant's legal practitioners